



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 2/15/2024
BY: MA. JULINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 70TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON FEBRUARY 13, 2024

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Nilo S. Bigno		SB Member/ Acting Municipal Vice- Mayor/ Presiding Officer
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON OFFICIAL BUSINESS:

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan		IP Mandatory Representative
------------------------	-------	-----------------------------

ON LEAVE:

Hon. Harvey S. Manawatao		Municipal Vice-Mayor
--------------------------	-------	----------------------

ORDINANCE NO. 04
Series of 2024

"AN ORDINANCE DECLARING EVERY 20TH DAY OF OCTOBER EACH YEAR AS *ARAW NG MGA TRIBO-
AEDOW TU MGU TRIBO* IN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR IN
COMMEMORATION OF THE PASSAGE OF THE INDIGENOUS PEOPLES RIGHTS ACT (IPRA) OF 1997

Author : Hon. Tanie A. Quillano

Enacted: All Members present

EXPLANATORY NOTE

WHEREAS, Section 22, Article II of the 1987 Philippine Constitution stipulated the recognition
and promotion of the rights of Indigenous Cultural Communities/Indigenous Peoples by the

government within the framework of national unity and Development;

WHEREAS, in consonance to the above constitutional provision, Republic Act No. 8371 also known as "An Act to Recognize, Protect and Promote the Rights of Indigenous Cultural Communities/ Indigenous Peoples, Creating a National Commission on Indigenous Peoples, Establishing Implementing Mechanisms, Appropriating Funds Therefor, and for other purposes" was enacted by Congress on October 29, 1997;

WHEREAS, in RA No. 10066 also known as "An Act Providing for the Protection and Conservation of the National Cultural Heritage, Strengthening the National Commission for Culture and the Arts (NCCA) and its Affiliated Cultural Agencies and for other Purposes" ensures the protection, preservation, conservation and promotion of the local cultural historical heritage in their environment, educational and cultural activities;

WHEREAS, the Municipal Government of Carmen, Surigao del Sur recognizes the importance of the Indigenous Cultural Communities/Indigenous Peoples Culture as a way of valuing the Filipino's rich cultural heritage undamaged by any colonial influence;

WHEREAS, part of preserving the customs and traditions of the Indigenous Cultural Communities/Indigenous Peoples is through celebration showcasing the uniqueness of their cultural heritage;

WHEREAS, in view of the foregoing and in order to sustain the implementation of IPRA Anniversary Celebration and promote its Culture;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

Section 1. SHORT TITLE- This ordinance shall be known as "An Ordinance institutionalizing the Celebration of Araw ng mga Tribu/Aedow Tu Mgu Tribu in the Municipality of Carmen, Surigao del Sur"

Section 2. OBJECTIVES-

- a. The Municipality of Carmen, Surigao del Sur recognizes the Constitutional rights of every Carmenanon to protect, preserve and promote their respective cultural heritage and the ethnicity of the local communities;
- b. The Municipality of Carmen recognize, respect and protect the rights of ICCs/IPs to preserve and develop their cultures, traditions and institutions. It shall consider these rights in the formulation of local laws and policies.

Section 3. APPLICATION- This ordinance shall apply to all members of the Indigenous Cultural Communities/Indigenous Peoples particularly the Manobo, Mamanwa and other ethno linguistic groups who are living within the territorial jurisdiction of the Municipality of Carmen, Surigao del Sur;

Section 4. DEFINITIONS OF TERMS-

- 1) **Culture:** A way of life of a group of people, the behaviors, beliefs, values, and symbols that they accept, generally without thinking about them, and that are passed along by communication and imitation from one generation to the next.
- 2) **Indigenous Cultural Communities/Indigenous Peoples** – refers to a group of people or homogenous societies identified by self-ascription and ascription by others, who have continuously lived as organized community on communally bounded and defined territory, and who have, under claims of ownership since time immemorial, occupied, possessed and

utilized such territories, sharing common bonds of language, customs, traditions and other distinctive cultural traits, or who have through resistance to political, social and cultural inroads of colonization, non-indigenous religions and cultures, became historically differentiated from the majority of Filipinos. ICCs/IPs shall likewise include peoples who are regarded as indigenous on account of their descent from the populations which inhabited the country, at the time of conquest of colonization or at the time so inroads of non-indigenous religions and cultures, or the establishment of present state boundaries, who retain some or all of their own economic, cultural and political institutions, but who have been displaced from their traditional domains or who may have resettled outside their domains;

- 3) **Indigenous Peoples Mandatory Representative (IPMR)**- A person duly selected and endorsed by a particular ICCs/IPs pursuant to their adopted local policy guidelines and customary laws to a particular local legislative council to represent the general concerns and welfare of all ICCs/IPs in a given local government unit.
- 4) **Indigenous Political Structures** - refer to organizational and cultural leadership, systems, institutions, relationships, patterns and process for decision- making and participation, identified by ICCs/IPs such as, but not limited to, Council of Elders, Council of Timuays, Bodong Holders, or any other tribunal or body of similar nature;
- 5) **Indigenous People's Organization** – refers to a private, non-profit voluntary organization of members of an ICC/IP which is accepted as representative of such ICCs/IPs.
- 6) **Tradition.** An inherited, established, or customary pattern of thought, action, or behavior (as religious practice or a social custom).
- 7) **Mamanwa Ethnolinguistic Group** - one of the tribes in the Philippines who bear a striking physical resemblance to the negritos, believed to be descendants of the original settlers of our country. Mamanwa or Mamanua is derived from the native word man, meaning first and Banwa, which means settlers of people thus, First settlers of first people. At present, Members of the Mamanwa Ethnolinguistic Groups can be found in the hillside of barangay Poblacion of the Municipality of Carmen.
- 8) **Manobo Ethnolinguistic Group** – “Manobo” or “Manuvu” means “person” or “people”, it may also have been originally “Mansuba” from man (person or person) and suba (river), hence meaning “river people”. A third derivation is from “Banobo”, the name of creek that presently flows to Pulangi River about 2 kms. below Cotabato City. A fourth is from “man” meaning first, an original and “tuvu” meaning “grow”, growth. “Manobo” is the Hispanized form.

The Manobo belong to the original stock of proto-Philippine or proto- Austronesian people who came from South China thousands of years ago, earlier than the Ifugao and other terrace-building peoples of the Northern Luzon. Ethnolinguistic Richard Elkins (1966) coined the term “Proto-Manobo” to designate this stock of an original non-Negritoid people of Mindanao.

Section 5. TECHNICAL WORKING COMMITTEE (TWC) -There shall be a TWC composed of the following:

- a. Municipal Mayor
- b. Sangguniang Bayan Member Committee of Culture and Arts Chairman
- c. Municipal Social Welfare and Development Officer or Representative
- d. Municipal Office of the Department of the Interior and Local Government or Representative
- e. Municipal Planning Development Officer or Representative
- f. National Commission on Indigenous Peoples Representative
- g. Principals of IP schools
- h. Municipal Tribal Chieftain

- i. IPO Chairman
- j. Tribal Chieftains of Sitio Gacub, Hinapoyan and Hubason
- k. Municipal Indigenous Peoples Mandatory Representative
- l. Barangay IPMR of Poblacion and Hinapoyan
- m. Selected Tribal Leaders
- n. IP Youth
- o. IP Women

Section 6. DUTIES AND FUNCTIONS OF THE TWC - In the proper consultation with the ICCs/IPs concerned, the TWC shall perform the following duties and functions:

1. Formulate plans and strategies on the conduct of the IP Day;
2. Call upon or invite representatives from any department, bureau, office, agency or instrumentality of the government, and request the local government units, private sectors and non-government organizations for assistance as the circumstances may require;
3. Spearhead the conduct of the annual celebration of the IP Day and encourage the full and active participation and involvement of all IP and non-IPs, other sectors and stakeholders, including all concerned government and non-government agencies/institutions;
4. Continually evaluate and assess the program and all its component activities and formulate innovations thereof when necessary to ensure the program's efficiency and effectiveness; and
5. Recommend policies and strategies to further enhance the celebration.

Section 7. ACTIVITIES –This celebration centered on different inter-cultural and social activities of Indigenous Peoples and Indigenous Cultural Communities from different barangays within the Municipality of Carmen, Surigao del Sur;

Section 8 IMPLEMENTING RULES AND REGULATIONS – The Local Chief Executive through the Municipal Historical, Cultural and the Arts Council and the Office of the Municipal IPMR shall promulgate guidelines and mechanism pertaining to the celebration of the Araw ng mga Tribu, provided that the Implementing Rules and Regulations shall contain the following principles:

- IP rights-based, self-governance and self-determination
- IKSP-based
- Development with identity
- Emphasis on socio-cultural preservation
- Gender-sensitivity

Section 9. TRIBAL ATTIRE- All Tribal Leaders must wear Tribal Attire and all IP participants shall wear red t-shirt or polo shirt.

Section 10. TEACHERS/ STUDENTS PARTICIPATION – The participation of teachers/ students of IPs Elementary and Secondary schools shall be subject to the Issuance of DepED Order.

Section 11. APPROPRIATION - The amount of at least Two Hundred Thousand Pesos (₱200,000.00) shall be appropriated annually for the implementation of this ordinance in the Annual Budget beginning Fiscal Year 2024.

Section 12. Repealing Clause – All ordinances, rules and regulations or any part thereof which are contrary to or inconsistent with any if this ordinance are hereby repealed or modified accordingly;

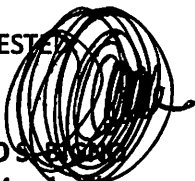
Section 13. Separability Clause – If any provision of this ordinance is declared inconsistent or illegal, other provisions which are not affected shall remain invalid and have full force and effect.

Section 14. Effectivity Clause – This ordinance shall take effect upon its approval.

ENACTED this 13th day of February 2024 at Carmen, Surigao del Sur.

I HEREBY CERTIFY to the correctness of the foregoing ordinance


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

ATTESTED 
NILO S. BORDA
SB Member/
Acting Municipal Vice-Mayor/
Presiding Officer

APPROVED:

JANE V. PLAZA
Municipal Mayor